



What this packet does

Gives a fast decision path for NOI vs NDC, a pre-submit checklist, and high-risk mistakes that cause rework.

2025 CGP effective August 29, 2025 through August 28, 2030

1) Decide In 60 Seconds: NOI or NDC

File an NOI when:

- The site discharges or may discharge stormwater off-site.
- Runoff reaches a Water of the U.S. directly or through an MS4/storm drain.
- You are not fully sure that all stormwater stays on-site.

NOI has an application fee and annual fees until an approved NOT is filed.

Use NDC only when:

- There are no off-site stormwater discharges from construction activity.
- You can document controls that keep stormwater on-site.
- The certification is signed by an RCO or DRO in myDEQ.

NDC has no fee, but local jurisdictions can still require separate site controls.

2) Eligibility Checks Before You File

1. Confirm disturbed area is 1+ acre, or part of a common plan that totals 1+ acre.
2. Map every potential outfall, including sheet flow to curb/storm drain/MS4.
3. If any discharge is possible, file NOI (NDC is only for true no-discharge scenarios).
4. Confirm who will certify in myDEQ (RCO or DRO with proper authority).
5. If a city or town has stricter conditions, follow those in addition to ADEQ requirements.

3) Pre-Submit Data Checklist (Collect First)

Data You Need	Why It Matters
Operator + signer info	RCO/DRO authority and certification are required to submit.
Exact disturbed acreage	Drives coverage eligibility and fee bracket logic.
Site location + map pin	Supports outfall/MS4/waterbody determination in myDEQ.
Outfall list (or representative	Required for accurate discharge characterization.

Data You Need	Why It Matters
outfalls)	
Receiving waterbody / MS4 path	Determines how discharges are tracked and reported.
SWPPP status	NOI path requires SWPPP development and implementation.
Site superintendent contact	Required day-to-day compliance contact details.

4) NOI Filing Path (Operator Playbook)

1. In myDEQ, start a new application from "Get New" for construction stormwater coverage.
2. Complete project/operator fields and verify acreage still under active construction.
3. Map outfalls and identify receiving water or MS4 pathways accurately.
4. Upload/prepare required supporting information and complete certification.
5. Submit and pay fee; keep records of submittal and invoice status.
6. Maintain permit obligations until final stabilization and approved NOT.

5) NDC Filing Path (No-Discharge Sites)

1. Confirm site design/controls prevent off-site stormwater discharge.
2. Document the controls used to retain/manage stormwater on-site.
3. Submit NDC in myDEQ and certify via authorized RCO/DRO.
4. Save certificate and keep controls maintained to preserve no-discharge status.
5. If site conditions change and discharge becomes possible, move to NOI coverage immediately.

6) Mistakes That Cause Rework

- Under-reporting disturbed acreage after phasing or scope changes.
- Assuming no discharge because retention exists, without validating overflow pathways.
- Choosing NDC when discharge can occur through a conveyance/MS4.
- Missing signer authority setup (RCO/DRO) before final certification.
- Failing to submit NOT when work is complete and stabilized.

7) Compliance Risk Snapshot

Civil penalty context: A.R.S. § 49-262(C) states a civil penalty of up to \$25,000 per day per violation for applicable violations.

Legacy note: Some older municipal handouts still reference \$27,500/day. Use current statutory and ADEQ source

documents for decisions.

8) Support Contacts

myDEQ Technical Support

Phone: 844-827-4768

Email: myDEQ.support@azdeq.gov

Web: azdeq.gov/mydeq

Desert Services

Office: 480-513-8986

Contact: Jayson Roti

Cell: 602-722-0218

Site: desertservices.net

Source log

- ADEQ AZG2025-001 Construction General Permit (effective 2025-08-29)
- ADEQ AZG2025-001 CGP Fact Sheet (August 2025)
- ADEQ CGP FAQ (revised October 28, 2025)
- myDEQ User Roles & Responsibilities (TM-18-28)
- A.R.S. § 49-262 (civil penalties)
- Town of Fountain Hills NOI Q&A (legacy local handout)

Operational guidance only. This packet is not legal advice and does not replace permit text.